

SEPARATION AND RELEASE AGREEMENT

This agreement sets forth the mutual agreement of GyanSys Infotech Pvt. Ltd. ("Company") and **Khalid Akhter** ("Employee") regarding employee's resignation from GyanSys. GyanSys is not obligated to make any payment to Employee and GyanSys' willingness to enter into this agreement is without prejudice to GyanSys' rights in the event that this Agreement is not executed by the Employee and GyanSys. Employee and GyanSys agree that this Agreement is entered into as an amicable resolution of any and all matters arising between them. Employee agrees that except as expressly set forth in this Agreement and GyanSys' benefit plans, Employee is not entitled to receive from GyanSys the payment or distribution of any amounts of pay, benefits, cash, stock, stock options or other type of property.

1. Separation Date: Employee's employment with GyanSys will end on **06 October 2025** based on the Employee's resignation which was on **06 October 2025**.
2. Consideration from GyanSys: The employee on separation and release shall receive from GyanSys the amount shared as per Final Settlement shared with. There will not be any other consideration or dues the employee shall have to pay GyanSys or shall receive from GyanSys on separation and release; after considering any notice pay and other considerations the Employee owes to GyanSys or severance payments and other considerations to which Employee may be entitled to in any way by law or contract including without limitation any notice or severance pay provided for under the appointment letter of the Employee with GyanSys.
3. Complete Release: In exchange for the above described consideration from GyanSys, Employee hereby fully releases GyanSys and all of its owners, partners, shareholders, predecessors, successors, assigns, agents, directors, officers, employees, representatives, attorneys, subsidiaries, joint ventures and affiliates (and agents, directors, officers, employees, representatives and attorneys of such subsidiaries and affiliates) (collectively, "Released Parties"), from any and all known or unknown claims or demands Employee may have against any of them. By this release Employee expressly waives and opts out of all claims, whether asserted on an individual or class action basis, against any Released Party arising out of any contract, express or implied, any covenant of good faith and fair dealing, express or implied, any tort (whether intentional or negligent, including claims arising out of the negligence or gross negligence of any Released Party and claims of express or implied past or future defamation by any Released Party), and any federal, state or other governmental statute, regulation or ordinance. Further the payment of such consideration from GyanSys to Employee is being made on the request of Employee and in the manner requested by Employee and which Employee agrees and acknowledges is fair, sufficient and equitable and is in full and final settlement of all claims, known or unknown, and counter claims and the Parties agree that they will not have any further claims in any manner against each other except any claim by GyanSys against the employee arising out of violation of this agreement by Employee. Employee attests and understands that by providing the above-described consideration in exchange for this release, GyanSys is not admitting any



wrongdoing. Employee also attests and understands that in the event Employee seeks employment with GyanSys in future and is not hired, Employee will not assert any type of charge, complaint, claim or suit against GyanSys because of not being hired.

4. **Non-Admission of Liability:** Employee and GyanSys understand and agree that they are entering into this Agreement to, among other things, resolve any claims or differences that may exist between them. By entering into this Agreement, neither Employee nor GyanSys admits any liability or wrongdoing.
5. **Future Employment:** Employee agrees that Employee has no right to future employment at GyanSys and that should Employee seek employment with GyanSys in the future, any decision regarding rehire is at GyanSys' sole discretion.
6. **Company Documents, Information or Property:** Employee agrees that, on or before the Separation Date, employee will return to GyanSys any and all documents relating to GyanSys or its business operations or its clients' business operations (and any and all copies thereof, whether in paper or electronic form), computer equipment, badges, credit cards and any other GyanSys property in Employee's possession or control. Employee agrees that Employee will not take any such documents or property from the control or premises of GyanSys and that if, at any time after the Separation Date, Employee should come into possession of any such documents or property, Employee will return such documents or property to GyanSys immediately.
7. **Employment and Other Agreements:** Employee agrees that, except as otherwise provided in this Agreement, the provisions of the employment agreement that Employee previously entered into with GyanSys will remain in full force and effect, the terms of which are specifically incorporated into this Agreement by reference.
8. **Sensitive Information:** Employee was employed by GyanSys in a position of trust and confidence. Employee was part of GyanSys' business operations and was provided with the tools and commitments necessary to enable the employee to help GyanSys achieve its long-term goals. During the term of Employee's employment, GyanSys has provided Employee with Sensitive Information (as that term is defined herewith). "Sensitive Information" means that information that is not generally disclosed to non-GyanSys individuals or organizations. Sensitive Information may include
 - a. Technical information of GyanSys, its affiliates, its customers or other third parties that was used by Employee in the fulfillment of his duties during the term of Employment with GyanSys
 - b. Business information of GyanSys, its affiliates, its customers or other third parties, such as but not limited to: actual or anticipated relationships between GyanSys and other companies; financial information (including sales levels, pricing, profit levels and other



- unpublished financial data); information relating to customer or vendor relationships; procurement processes, strategies or information; development and delivery schedules, employee or consultant lists, customer lists, customer preferences, financial information, credit information and similar items.
- c. Personnel information of GyanSys and its affiliates, such as but not limited to: information relating to employees of GyanSys (including information related to staffing, performance, skills, qualifications, abilities and compensation); key talent information and similar items, and
 - d. Information relating to future plans of GyanSys, its affiliates, its customers or other third parties, such as but not limited to: marketing and sales strategies, pending projects and proposals, proprietary development processes and similar items.
9. Non-solicitation and Non-competition: In exchange for the valuable consideration provided to Employee under this Agreement, Employee agrees to be bound by the following non-solicitation and non-competition clauses
- a. For the 24-month period immediately following the Separation Date, Employee will not, directly or indirectly, solicit (or assist another in soliciting) (i) any of GyanSys' customers or prospective customers with whom Employee had contact on behalf of GyanSys during the term of Employee's employment with GyanSys; or (ii) any of GyanSys' customers or prospective customers about whom Employee had any Sensitive Information during the term of Employee's employment with GyanSys
 - b. For the 24-month period immediately following the Separation Date, Employee will not, encourage (or assist another in encouraging) any customer, supplier, business partner, or vendor of GyanSys with whom Employee had any contact on behalf of GyanSys during the term of employment or about whom Employee had any Sensitive Information to terminate or diminish its relationship with GyanSys.
 - c. For the 24-month period immediately following the Separation Date, Employee will not, directly or indirectly solicit (or assign another in soliciting) for employment, consulting or other service engagement any employee, contractor, or consultant of GyanSys.
 - d. For the 24-month period immediately following the Separation Date, Employee will not, directly or indirectly advise, assist, attempt to influence or otherwise induce or persuade (or assist another in advising, attempting to influence or otherwise inducing or persuading) any person employed by GyanSys to end his or her employment relationship with GyanSys.
10. Non-disparagement: Employee agrees that, except as may be required by law or court order Employee will not, directly or indirectly, make any statement, oral or written, or perform any act or mission which is or could be detrimental in any material respect to the reputation or goodwill or GyanSys or any other Released Party. Employee further agrees that Employee will not



voluntarily participate in, or directly or indirectly aid or encourage any other part in connection with, any lawsuit, claim, demand or proceeding of any kind brought or asserted by any person or entity against GyanSys or any other Released Party. Employee's compliance with a subpoena, summons or other legally compulsive process will not be a violation of this provision.

11. Cooperation: Employee agrees that Employee will give GyanSys Employee's full cooperation in connection with any claims, lawsuits, or proceedings that relate in any manner to Employee's conduct or duties at GyanSys or that are based on facts about which Employee obtained personal knowledge while employed at GyanSys. In return, GyanSys agrees to reimburse Employee for direct and reasonable out of pocket expenses incurred with respect to rendering such cooperation. Employee further agrees that Employee will not voluntarily become a party to, or directly or indirectly aid or encourage any other party in connection with, any lawsuit, claim, demand, or adversarial or investigatory proceeding of any kind involving GyanSys or any of the Released Parties that related in any material way to his employment with GyanSys or that is based on facts about which employee obtained personal knowledge while employed with GyanSys. Employee's compliance with a subpoena, summons or other legally compulsive process will not be a violation of this provision.
12. Applicable law and Venue: THIS AGREEMENT SHALL BE INTERPRETED IN ALL RESPECTS BY THE LAWS OF INDIA AND THE VENUE FOR RESOLUTION OF ANY DISPUTES (LOCATION OF ANY LAWSUIT) SHALL BE SOLELY AT BANGALORE IN THE STATE OF KARNATAKA, INDIA.
13. Severability: The fact that one or more paragraphs (or portion thereof) of this Agreement may be deemed invalid or unenforceable by any court shall not invalidate the remaining paragraphs or portions of such paragraphs of this Agreement.
14. Certain Acknowledgements: Employee acknowledges that Employee is signing this Agreement voluntarily and with full knowledge of its contents. Employee and GyanSys agree and believe that the terms of this Agreement are reasonable and do not impose a greater restraint than necessary to protect GyanSys' Sensitive Information and other legitimate business interests. If a court of competent jurisdiction holds this not to be the case, Employee and GyanSys agree that the terms of this Agreement are hereby automatically reformed and rewritten to the extent necessary to make the Agreement valid and enforceable. It is the express intent of Employee and GyanSys that the terms of this Agreement be enforced to the full extent permitted by law.
15. Entirety: This Agreement constitutes the entire Agreement between Employee and GyanSys and supersedes all prior oral or written negotiations and agreements with GyanSys concerning the subject matter hereof. This Agreement may not be amended or modified except by a written agreement signed by Employee and an Authorized Officer of GyanSys.



16. Violation: Employee acknowledges and agrees that a violation of this Agreement would cause irreparable harm to GyanSys and Employee agrees that GyanSys will be entitled to an injunction restraining any violation or further violation of such provisions. In this connection, Employee covenants that Employee will not assert in any proceeding that any given violation or further violation of the covenants contained in this Agreement: (i) will not result in irreparable harm to GyanSys; or (ii) could be remedied adequately at law. GyanSys' right to injunctive relief shall be cumulative and in addition to any other remedies provided by law or equity.

If the foregoing accurately sets forth your agreement with GyanSys, please signify by signing below and returning this Agreement to GyanSys on or before the close of business on the third day after this agreement was presented to you at the following address: GyanSys Infotech Pvt. Ltd., 11, 12, 13 and 14th Floor, Tower-A, Prestige Shantiniketan Tech Park, Whitefield, Bangalore 560048. If GyanSys has not received a signed copy of this Agreement by that time, the offer reflected in this Agreement automatically terminate and expire without further notice from GyanSys. Any changes that the parties agree to make to this Agreement after it has been presented to you, whether such changes are material or non-material, will not extend the amount of time you have to consider this agreement.

I have carefully read this Agreement. I understand and accept its terms. I agree that I will continue to be bound by the provisions of this Agreement following my Separation Date i.e., 06 October 2025



Date: 06 October 2025

Khalid Akhter
"Employee"



Date: 06 October 2025

Dharmesh Kalaiah
Sr. Manager - Human Resources